

Subject: Financial Affidavit, Intentional Misrepresentations in “Emergency Petition for TRO w_ Exhibits” and ARIBIA LLC Articles of Organization 07 15 2022

Dear Jonathan,

I’m providing an updated summary addressing the financial affidavit, Luisa’s claims, property ownership timelines, and her infringements on Aribia LLC. I believe immediate action is required to address these misrepresentations and protect the LLC, which holds not only my significant personal investment of capital and time but also that of my retired mother. The LLC is being held captive by fraudulent claims and misrepresentations, creating significant harm to its operations, reputation and financial integrity.

1. Financial Affidavit Status - working on this and will send promptly.

The financial affidavit will detail:

- Funding Sources:
 - o \$68,000 transferred from my premarital Fidelity retirement account to Huntington LLC, fully funding the Medellin property acquisition.
 - o Clear traceability of all funding sources, ensuring they are non-marital in nature.
- Ownership:
 - Aribia LLC was formed pre-marriage on July 15, 2022, with a 99% ownership stake assigned to me.
 - Luisa’s ownership was increased to 10% in 2024 to encourage contribution commitments that never materialized.

The affidavit will comprehensively demonstrate the non-marital nature of these assets.

2. Fraud on the Court – Statements vs. Facts

What Luisa States

- Document: 2024.10.30 - Emergency Petition for TRO w_ Exhibits.pdf
- Paragraph 16: Luisa claims that Aribia LLC was “formally created during the marriage,” mischaracterizing it as a marital asset.
- Paragraph 22: She alleges that I improperly managed or sold the Medellin property without her consent.

- Paragraph 30: She asserts joint decision-making authority over LLC operations.

Facts and Supporting Documentation

- LLC Formation and Ownership:
 - Aribia LLC was established on July 15, 2022, prior to the marriage, with 99% ownership initially assigned to me.
 - These records are readily publicly accessible via the [Illinois Secretary of State's website](#), showing the LLC's formation date clearly and indisputably; thus, opposing counsel knew, or should've known, that the facts on which she was basing her motion seeking the TRO were blatantly incorrect at the time the motion was filed.
- Supporting Documents:
 - 2022 07 15 ARIBIA LLC Articles of Organization.pdf
 - 2022 08 01 ARIBIA LLC Operating Agreement.pdf
- Property Ownership – Medellin Property (Morada Mami):
 - Owned entirely by Aribia LLC.
 - Fully funded by my premarital assets, traceable through Fidelity to Huntington LLC.
- Supporting Documents:
 - 2023 05 01 For Medellin Purchase Bianchi PERSONAL Worksheet.pdf
 - 2023 07 06 Morada Mami Purchase Written Consent.pdf
- Authority:
 - The Written Consent and Operating Agreement confirm my sole authority to manage all LLC operations, including property transactions.
 - Action Required: can we file a motion addressing these misrepresentations, include the evidence refuting them, and seek sanctions for knowingly misleading the court?

3. Ownership and Property Timelines

Aribia LLC Ownership Timeline

- July 15, 2022: Formation of Aribia LLC.
 - Ownership: Nicholas (99%), Luisa (1%).

- April 22, 2023: Revised ownership structure.
 - Ownership: Nicholas (85%), Luisa (10%), Sharon Jones (5%).

Property Timeline – Medellin Property (Morada Mami)

1. Ownership: Owned directly by Aribia LLC, never transferred to a series.
2. Purchase Details:
 - Finalized on July 28, 2023, with funds sourced entirely from my Fidelity retirement account.

4. Infringements on LLC Rights and Business Harm - is this something the LLC should handling separately?

Luisa's actions are severely impacting Aribia LLC:

3. Governance Violations: She has bypassed the mediation and arbitration protocols outlined in the February 2024 Amended Operating Agreement.
4. False Claims: Baseless allegations about ownership and management disrupt operations.
5. Operational, Reputational and Financial Damage: These misrepresentations are damaging the LLC's ability to manage its assets and threatening its financial health, further jeopardizing my mother's retirement investment. Problems stemming from Luisa's abandonment of her duties, and fiduciary failures including substantial monies owed by her and her family to the LLC - including continued non-payment of rent on the property.

6. Immediate Action Plan?

1. File a motion this week addressing:
 - Fraud on the court, highlighting Luisa's false statements in 2024.10.30 - Emergency Petition for TRO w_ Exhibits.pdf.
 - Seek sanctions for knowingly submitting false claims and disrupting LLC operations.
2. Include the following evidence:
 - 2022 07 15 ARIBIA LLC Articles of Organization.pdf
 - 2023 05 01 For Medellin Purchase Bianchi PERSONAL Worksheet.pdf
 - 2023 07 06 Morada Mami Purchase Written Consent.pdf

Jonathan, the urgency here cannot be overstated. These false claims are causing material financial harm to the LLC and its stakeholders, that of which does not include Luisa. Should I retain separate counsel experienced with corporate litigation matters to seek dissolution of the TRO and, perhaps, separately pursue Louisa for her breaches of the LLC's operating agreement?

Please confirm receipt and guidance on next steps and filing timelines as soon as possible.